The chairperson and members hold office for a term of three years or until they attain the age of 70 years, whichever is earlier. They are eligible for re-appointment. After their tenure, the chairperson and members are not eligible for further employment under the Central or a state government.

The President can remove the chairperson or any member from the office under the following circumstances:

1. If he/she is adjudged insolvent; or
2. If he/she engages, during his/her term of office, in any paid employment outside the duties of his/her office; or
3. If he/she is unfit to continue in office by reason of the infirmity of mind or body; or
4. If he/she is of unsound mind and stands so declared by a competent court; or
5. If he/she is convicted and sentenced to imprisonment for an offence.

In addition to these, the President can also remove the chairperson or any member on the ground of proved misbehaviour or incapacity. However, in these cases, the President has to refer the matter to the Supreme Court for an inquiry. If the Supreme Court, after the inquiry, upholds the cause of removal and advises so, then the President can remove the chairperson or a member.

The salaries, allowances and other conditions of service of the chairperson or a member are determined by the Central government. But, they cannot be varied to his/her disadvantage after his/her appointment.

All the above provisions are aimed at securing autonomy, independence and impartiality in the functioning of the Commission.

Functions

The functions of the Commission are:

1. To inquire into any violation of human rights or negligence in the prevention of such violation by a public servant, either *suo motu* or on a petition presented to it or on an order of a court.
2. To intervene in any proceeding involving allegation of violation of human rights pending before a court.
3. To visit jails and detention places to study the living conditions of inmates and make recommendations thereon.
4. To review the constitutional and other legal safeguards for the protection of human rights and recommend measures for their effective implementation.
5. To review the factors including acts of terrorism that inhibit the enjoyment of human rights and recommend remedial measures.
6. To study treaties and other international instruments on human rights and make recommendations for their effective implementation.